

3. The plaintiffs seek monetary damages (special, compensatory and punitive) against defendants, as well as an award of attorney's fees and such other and further relief as the Court deems just and proper.

JURISDICTION AND VENUE

4. Jurisdiction of this Court is invoked under 28 U.S.C. § 1343 and 42 U.S.C. §§ 1981 and 1983.

5. The plaintiffs further invoke this court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this court that they form part of the same case or controversy.

6. Venue herein is proper for the United States District Court for the Eastern District of New York under 28 U.S.C. §1391 (a), (b) and (c), in that the events giving rise to the claim occurred within the boundaries of the Eastern District of New York.

JURY DEMAND

7. Plaintiffs demand a trial by jury in this action.

PARTIES

8. Plaintiff OMAR FERRIERA is twenty-three years old and at all times hereinafter mentioned was a resident of the State of New York and the County of Kings. He is of African-American ancestry.

9. Plaintiff JIMMY SANO is twenty-seven years old and at all times hereinafter mentioned was and still is a resident of the State of New York and the County of Kings. He is of African-American ancestry.

10. Plaintiff LOVE OLATUNJIOJO is twenty-six years old and at all times hereinafter mentioned was and still is a resident of the State of New York and the County of Kings. He is of African ancestry.

11. Defendants TAYLOR, CALDERON, PICHARDO, TOMASULO and JOHN DOES nos. 1-7 are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of the City of New York and/or the New York City Police Department, a municipal agency of the City of New York.

12. Defendants Taylor, Calderon, Pichardo, Tomasulo and John Does 1-7 are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of the City of New York, were acting for, and on behalf of, and with the power and authority vested in them by the City of New York and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. Defendants Taylor, Calderon, Pichardo, Tomasulo and John Does 1-7 are sued individually.

STATEMENT OF FACTS

13. On June 20, 2013, approximately 8:30PM, defendants Taylor, Calderon and other members of the New York City Police Department team (Diana Pichardo & Jane Doe No. 1 A/K/A "Pocahontas") arrested plaintiffs at Mermaid Avenue & West 24th Street in the Coney Island section of Brooklyn, NY.

14. Plaintiffs Omar Ferriera and Love Olatunjojo had visited the candy store "It'Sugar" on Surf & Stilwell Avenues where they purchased various candies from including some "Jolly Rancher" brand candy.

15. As Plaintiffs Omar Ferreira and Love Olatunjojo were walking in the area of Mermaid Avenue & West 24th Street, they were approached by defendant New York City police officers Jermaine Taylor and Jovanny Calderon, who detained, handcuffed and searched them, stating that a “call” by “undercovers” identified plaintiffs Ferreira and Olatunjojo of having “sold drugs”.

16. Finding only candy, including the Jolly Rancher candy mentioned, the officers repeatedly searched plaintiffs Ferreira and Olatunjojo and told them it was “only a matter of time before they found something.”

17. Notwithstanding the fact that plaintiffs Ferreira and Olatunjojo were not in possession of *any* controlled substances, both were arrested.

18. Plaintiff Jimmy Sano, who is an acquaintance of plaintiffs Ferreira and Olatunjojo, was in the area with his three-year-old daughter, saw the above-described detention, search and false arrest of plaintiffs Ferreira and Olatunjojo and protested that police were arresting plaintiffs Ferreira and Olatunjojo for no reason.

19. Defendant Pichardo ordered officers including “John Does” to take plaintiff Sano into custody and he was arrested.

20. Before placing plaintiff Omar Ferreira in the police car he was transported in, defendant police officers repeatedly punched him about the face and body, causing Mr. Ferreira to suffer pain and his face to become bloodied, bruised and swollen.

21. All three plaintiffs were transported to the 060 precinct for processing.

22. Neither plaintiff Ferreira nor Olatunjojo was told what they were being charged with but were repeatedly told they would “figure it out at the station.”

23. While at the 060 precinct, defendant officers continued to withhold from plaintiffs the basis for their arrest and the charges to be leveled, taunting plaintiffs by telling them they were going to go away for a long time and *that they knew why*.

24. While at the 060 precinct all three plaintiffs were strip-searched.

25. While at the 060 precinct, plaintiff Love Olatunjiojo repeatedly asked, over approximately four hours, to be allowed to use the bathroom but this request was repeatedly denied by numerous officers including defendants "John Does".

26. While at the 060 precinct defendant police officers, including defendants "John Does", repeatedly punched plaintiff Love Olatunjiojo about the face and body, causing Mr. Olatunjiojo to suffer a split lip, pain, facial bruising, bleeding and swelling. Defendant officers also "pinned" plaintiff Olatunjiojo against a wall causing his fingers and hand to become dislocated and extremely swollen and causing pain.

27. Plaintiffs Ferriera and Olatunjiojo were treated by Emergency Service Workers at the 060 precinct.

28. All three plaintiffs were arraigned on June 21, 2013, in Kings County Criminal Court, night session.

29. Plaintiffs Ferriera and Olatunjiojo were each charged with single count of Criminal Possession of a Controlled Substance in the Third Degree (NY Penal Law §220.03), a Class A misdemeanor. Mr. Ferriera was additionally charged with a single count of Resisting Arrest (NYPL §205.30), a Class "A" misdemeanor.

30. Plaintiff Sano was charged with Obstruction of Governmental Administration, (NYPL §195.05) and Resisting Arrest (NYPL §205.30), both Class "A" misdemeanors, as well as charges of Disorderly Conduct under NYPL §§ 240.20(3), and 240.20(6).

31. The Criminal Court complaints were sworn out by defendant police officer Jermaine Taylor, who deposed, *inter alia*: that he [Taylor] had recovered a “quantity of methamphetamine” from the person of plaintiffs Ferriera and Olatunjiojo, and that he, [Taylor], “has had professional training as a police officer in the identification of methamphetamine.”

32. In a post-arrest telephone interview with the Kings County District Attorney’s Office, defendant Taylor represented that a positive field test of the “controlled substances” recovered from plaintiffs and Ferriera and Olatunjiojo had been conducted.

33. Plaintiffs had been in custody for over twenty-four hours before all three were released on their own recognizance. The plaintiffs’ criminal cases were adjourned until September 19, 2013, by which time the prosecution was ordered to obtain laboratory analysis of the alleged controlled substance.

34. On June 22, 2013, the New York City Police Department Controlled Substance Analysis Section performed a Gas Chromatography/Mass Spectrometry analysis of the alleged methamphetamine, which is described on the report as “2 red crystalline rocks of solid material” and “4 blue crystalline rocks of solid material.” The results of the analysis revealed “No Controlled Substance Identified.” The report of the results was generated on June 24, 2013 and bears the following caption, in all capitals and bold typeface: “**NO CONTROLLED SUBSTANCE IDENTIFIED, NOTIFY DISTRICT ATTORNEY**”.

35. No action was taken by the District Attorney with respect to the charges pending against plaintiffs Ferriera and Olatunjiojo between June 24, 2013 and September 19,

2013. However, on that day, when plaintiffs Ferriera and Olatunjojo appeared in court, the District Attorney moved to dismiss the cases against each.

36. However, the charges against Mr. Sano were not resolved until April 2, 2014, at which time the Honorable Judge Hecht adjourned the case in contemplation of dismissal, under NYCPL §170.55.

37. At all times during the events described, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiffs.

38. During all of the events described, defendants acted maliciously and with intent to injure plaintiffs.

39. As a direct and proximate result of the acts of defendants, plaintiffs suffered the following injuries and damages:

- a) Violation of plaintiffs' rights, pursuant to the First Amendment of the United States Constitution, to freedom of speech;

- b) Violation of plaintiffs' rights, pursuant to the Fourth Amendment of the United States Constitution, to be free from unreasonable search and seizure

- c) Violation of plaintiffs' rights, pursuant to the Fifth Amendment of the United States Constitution, not to be deprived of liberty without Due Process of Law;

- d) Violation of plaintiffs' rights, pursuant to the Eighth Amendment of the United States Constitution, not to have cruel and unusual punishment inflicted;

e) Violation of plaintiffs' rights to Equal Protection Under the Law pursuant to the New York State constitution and the Fourteenth Amendment to the United States Constitution;

f) Violation of plaintiffs' New York State Constitutional rights to freedom of speech, freedom from unreasonable search and seizure, freedom from cruel and unusual punishment; and due process of Law

g) Physical pain and suffering,

h) Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience and anxiety;

i) Loss of liberty.

FIRST CAUSE OF ACTION

Deprivation of Federal Civil Rights under the United States Constitution and 42 U.S.C. §§ 1981 and 1983

40. The preceding paragraphs are here incorporated by reference.

41. By their conduct and actions in unlawfully detaining, searching, arresting, imprisoning plaintiffs, and in fabricating evidence against plaintiffs, and forcing plaintiffs to strip naked and be searched, and in failing to intercede on behalf of plaintiffs and protect them from the unjustified and unconstitutional treatment they received at the hands of other defendants, defendants Taylor, Calderon, Pichardo, Tomasulo & John Does 1-7, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of the plaintiffs' constitutional rights as guaranteed under 42 U.S.C. §§ 1981

and 1983 and the United States Constitution, including its First, Fourth, Fifth, Eighth and Fourteenth Amendments.

42. As a result of the foregoing, plaintiffs were deprived of their liberty, suffered emotional distress, great anxiety and humiliation, pain, physical injury, fear and damage to their reputations, and were otherwise damaged and injured.

SECOND CAUSE OF ACTION
Liability for New York State Constitutional Violations
under Article I §§ 1, 5, 6, 8, 11 & 12

43. The preceding paragraphs are here incorporated by reference.

44. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiffs without probable cause or reasonable suspicion, and harassing and assaulting them and depriving them of due process and equal protection of laws, defendants deprived plaintiffs of rights, remedies, privileges and immunities guaranteed to every New Yorker by Article I §5 (prohibiting cruel and unusual punishments), Article I §6 (providing for due process), Article I §8 (guaranteeing freedom of speech), Article I §11 (prohibiting discrimination in civil rights and providing for equal protection of laws) and Article I §12 (prohibiting unreasonable searches and seizures) of the New York State Constitution.

45. In addition, defendant police officers conspired among themselves and conspired with other individuals to deprive plaintiffs of their rights secured under Article I §§ 5, 6, 8, 11 and 12 of the New York State Constitution and took numerous overt steps in furtherance of such conspiracy, as set forth above.

46. Defendant officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents or employees. Defendant officers' acts were beyond the scope of

their jurisdiction, without any authority of law, and were in abuse of their powers. Defendant officers acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their rights as secured by Article I §§ 5, 6, 8, 11 and 12 of the New York State Constitution.

47. Defendants, their officers, agents, servants and employees were responsible for the deprivation of plaintiffs' state constitutional rights.

THIRD CAUSE OF ACTION
False Arrest and Unlawful Imprisonment

48. The preceding paragraphs are here incorporated by reference.

49. Defendants subjected plaintiffs to false arrest, false imprisonment and deprivation of liberty without probable cause.

50. Defendants have deprived plaintiffs of their civil, constitutional and statutory rights and have conspired to deprive them of such rights and are liable to plaintiffs under 42 U.S.C. §§ 1983 and 1985 and the New York State Constitution.

51. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiffs were injured.

FOURTH CAUSE OF ACTION
Deprivation of Federal Civil Rights under 42 U.S.C. § 1985

52. The preceding paragraphs are here incorporated by reference.

53. In an effort to find fault to use against the plaintiffs, defendant officers conspired among themselves, and conspired with others to deprive plaintiffs of their Constitutional rights under 42 U.S.C. §1983, and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy, as set forth above.

54. Thus defendant officers engaged in a conspiracy designed to deprive plaintiffs of their constitutional and federal rights in violation of U.S.C. §1985.

55. As a direct and proximate result of the abuse of authority detailed above, plaintiffs sustained the damages stated.

FIFTH CAUSE OF ACTION
Falsification of Evidence under 42 U.S.C. § 1983

56. The preceding paragraphs are here incorporated by reference.

57. The defendants are liable to plaintiffs because they intentionally conspired to fabricate evidence against plaintiffs, depriving plaintiffs of liberty without due process of law.

58. Furthermore, the defendants violated the law by making false statements by drafting and/or signing sworn criminal court complaints and false police reports.

59. Furthermore, the individual defendants violated the law by manipulating evidence to attempt to obtain a prosecution and unjust conviction, while performing the function of investigators.

60. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that individuals who knowingly use false evidence at trial to obtain a conviction act unconstitutionally and that this is redressable in an action for damages under 42 U.S.C. § 1983.

61. The individual defendants are also liable to plaintiffs because they intentionally created false information likely to influence a fact finder's or jury's decision by, inter alia, forwarding false information to prosecutors, drafting and signing sworn criminal court complaints and police reports, omitting and/or manipulating evidence, fabricating testimony and evidence, suppressing and concealing exculpatory material and

evidence, and forwarding and presenting false information to a court thereby violating plaintiffs' constitutional right to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

62. As a direct and proximate result of the abuse of authority detailed above, plaintiffs sustained the damages stated.

SIXTH CAUSE OF ACTION

Violation of the Equal Protection Clause under 42 U.S.C. § 1983

63. The preceding paragraphs are here incorporated by reference.

64. The defendants unlawfully stopped, detained, arrested, and prosecuted plaintiffs because of the plaintiffs' national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

65. As a result of the foregoing, plaintiffs were deprived of their rights under the Equal Protection Clause of the United States Constitution.

66. As a direct and proximate result of the abuse of authority detailed above, plaintiffs sustained the damages stated.

SEVENTH CAUSE OF ACTION

Malicious Prosecution under 42 U.S.C. § 1983

67. The preceding paragraphs are here incorporated by reference.

68. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs, a prosecution which had no reasonable possibility of any of the plaintiffs being convicted.

69. Defendants caused plaintiffs to be prosecuted without any probable cause until the charges against plaintiffs Ferriera and Olatunjojo were dismissed on June 19, 2013, and until the charges against plaintiff Sano were resolved in his favor on April 2, 2014.

70. As a direct and proximate result of the abuse of authority detailed above, plaintiffs sustained the damages stated.

EIGHTH CAUSE OF ACTION
Failure to Intervene under 42 U.S.C. § 1983

71. The preceding paragraphs are here incorporated by reference.

72. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

73. The defendants failed to intervene to prevent the unlawful conduct described herein.

74. As a direct and proximate result of the abuse of authority detailed above, plaintiffs sustained the damages stated.

NINTH CAUSE OF ACTION
Excessive Use of Force

75. The preceding paragraphs are here incorporated by reference.

76. On the above incident date, the individual defendants' use of force upon plaintiffs Ferriera and Olatunjojo was objectively unreasonable.

77. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest. Those defendants who did not touch the plaintiffs but witnessed the unlawful conduct, yet failed to intervene and protect plaintiffs from this conduct are also liable to plaintiffs.

78. Accordingly, the defendants are liable to plaintiffs for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

TENTH CAUSE OF ACTION
Negligent & Intentional Infliction of Emotional Distress

79. The preceding paragraphs are here incorporated by reference.

80. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.

81. As to plaintiffs Ferriera and Olatunjojo, the outrageousness of defendants' conduct in arresting plaintiffs without telling them the reason for said arrest, charging them with the possession of an alleged controlled substance that was actually *candy*, and in physically assaulting plaintiffs has caused emotional distress which has damaged plaintiffs Ferriera and Olatunjojo's personal lives.

82. As to plaintiff Jimmy Sano, the outrageousness of defendants' conduct in arresting Sano for protesting in the obviously illegal and tortious conduct of defendants in arresting plaintiffs Ferriera and Olatunjojo has caused emotional distress which has damaged plaintiff.

83. Consequently plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs demand judgment against the defendants, jointly and severally, as follows:

- a) In favor of plaintiffs in an amount to be determined by a jury for each of plaintiffs' Causes of Action;
- b) Awarding plaintiffs punitive damages in an amount to be determined by a jury for each of plaintiffs' Causes of Action;

- c) Awarding plaintiffs reasonable attorney's fees, costs and disbursements of this action; and
- d) Granting such other and further relief as this Court deems just and proper.

Dated: Brooklyn, New York
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/s/ KENNETH F. SMITH

The Law Offices of Kenneth F. Smith, PLLC
Counsel for Plaintiffs
16 Court Street, Suite 2901
Brooklyn, NY 11241
(646) 450-9929
(646) 514-4524 (FAX)

TO: VIA ECF
David De La Garza Bassett
Assistant Corp. Counsel
to the City of New York
Attorney for Defendants
100 Church Street,
New York, NY 10007